

How to Demand Disclosure**Instructions**

A **Demand to Disclose (Form F11.02A)** is a form that you can use to request specific documents or information from another party to your family law matter, where that party has not already provided that document or information. You can only demand a document or information from the other person if you have an ongoing family law matter with them.

Completing Your Demand to Disclose

You can fill out this form by hand or you can download and fill out this form electronically at <https://www.court.nl.ca/supreme/rules-practice-notes-and-forms/family/general/> (If you fill out the form electronically, you must still print the form, file it with the Court, and serve a copy on the other person).

Select the documents from the list provided or add your own. If you require more space to request additional documents, attach an extra page and indicate that you have attached an extra page.

Filing Your Demand to Disclose

You must make **3 extra copies** of your completed and signed Demand to Disclose.

To file the Demand to Disclose, you must bring the Demand to Disclose to the Supreme Court location where your file is or you can mail it to that location. You must file your original Demand to Disclose with the Court **before the trial date** is set by the Court.

Serving Your Demand to Disclose

You must give a copy of the Demand to Disclose to the other person. This is called *service*. You may serve the Demand to Disclose together with your Originating Application, Originating Application to Vary, or Response. You can serve the other person by: personal service (an adult, who is not you, can hand-deliver the document), leaving a copy with the other person's lawyer, leaving a copy at the other person's address, registered mail/courier, or regular mail. You can also serve the other person using fax, email, or electronic document exchange, if the other person has provided that information.

You must serve the other person **before the trial date is set** by the Court. The other person has 30 days (from the date of service) to respond.

More Information

Questions? Go to <https://www.court.nl.ca/supreme/family-division/> or contact a Court near you:

Corner Brook: (709) 637-2227

Grand Falls-Windsor: (709) 292-4260

Gander: (709) 256-1115

Happy Valley-Goose Bay: (709) 896-7892

Grand Bank: (709) 832-1720

St. John's: (709) 729-2258

--- It is highly recommended that you get advice from a lawyer ---

If you need help finding or getting a lawyer, you can contact:

Public Legal Information Association of NL (PLIAN): www.publiclegalinfo.com or 1 (888) 660-7788

Legal Aid: www.legalaid.nl.ca or 1(800) 563-9911

--- REMOVE THIS PAGE BEFORE SERVING THE DEMAND ---

How to Respond to a Demand to Disclose

Instructions

The other person in your family law matter has demanded that you provide certain documents and information. The specific documents and information the other person has asked for are listed in the attached Demand to Disclose (Form F11.02A).

You have only **30 days** (from the date that you received this Demand to Disclose) to provide the other person and the Court with a **Response to a Demand to Disclose (Form F11.02B)**. You can find the Response to Demand to Disclose form at any Supreme Court location or online: www.court.nl.ca/supreme/family/forms.html

If you do not respond, the Court may proceed and make an order without hearing from you. The Court can:

- Make assumptions about your financial situation
- Order you to pay support
- Order that you provide the requested documents within a specified time
- Order your employer or someone else to provide the documents and information
- Order you to pay costs, including compensation to the other person

Providing Disclosure

If you want to provide some or all of the documents and information requested, you must file a Response to Demand to Disclose. You can attach the documents or information to Demand to Disclose.

You must give a copy of the Demand to Disclose and the documents to the other person. This is called *service*. You can serve the other person by: personal service (an adult who is not you hand-delivers the document), leaving a copy with the other person's lawyer, leaving a copy at the other person's address, registered mail/courier, or regular mail. You may also serve the other person using fax, email, or electronic document exchange, if the other person has provided that information.

If You Cannot Provide Disclosure

If you cannot provide the requested documents and information for any reason, you may be able to give authorization to a person or institution (eg. your employer) to provide the information. Otherwise, you will have to explain why you cannot provide the documents on the Response to Demand to Disclose.

If You Object to Providing Disclosure

If you want to object to any or all of the demands, you must still file and serve a Response to Demand to Disclose. You will have to explain why you object to providing that information.

More Information

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Form F11.02A: Demand to Disclose (Family Law)



**In the Supreme Court of
Newfoundland and Labrador
(General/Family)**

FOR COURT USE ONLY

COURT FILE NO: _____

CENTRAL DIVORCE REGISTRY NO: _____

Filed at _____, Newfoundland and
Labrador, this _____ day of _____, 20____.

Registry Clerk of the Supreme Court of Newfoundland and Labrador

BETWEEN: _____ APPLICANT
(Print full name)

AND: _____ RESPONDENT
(Print full name)

AND: _____
(Print full name)

☐ NOT APPLICABLE
☐ SECOND APPLICANT
☐ SECOND RESPONDENT

I, _____, the ☐ Applicant ☐ Respondent ☐ Other:
(Print your name)

demand that, _____, the ☐ Applicant ☐ Respondent ☐ Other:
(Print the other party's name)

provide copies of the following documents to all parties within 30 days of service of this form:

1	☐ Copy of the most recent pension plan statement (and all plans in which you have/will have an interest).
2	☐ Confirmation of your entitlement and valuation of any accrued severance benefits, annual leave benefits, and other monetary benefits in which you have an interest.
3	☐ Copy of any health and dental insurance coverage available to you through your employer (showing whether coverage is available for your spouse and/or children). <i>If available, provide coverage premiums/employee costs for single person coverage, couple coverage, and/or family coverage.</i>
4	☐ Copy of your most recent assessment for any appraisals of the property/properties that you own.

5	☐ Copy of every cheque issued to you from any business/corporation in which you have an interest (or to which you have rendered a service) for the period: _____.
6	☐ Copy of every bank account statement in your name for the period: _____.
7	☐ Copy of the most recent statement for all RRSP's, TFSA's, RESP's, term deposit certificates, guaranteed investment certificates, stock accounts, and other investments in your name (or in which you have an interest).
8	☐ Copy of every insurance policy (all whole life, term life, disability, etc.) in your name (or in which you have an interest). Include the cash surrender value for every policy.
9	☐ Copy of every credit card statement for all credit cards in your name for the period: _____.
10	☐ Other (Specify):

DATED at _____, this _____ day of _____, 20_____.	
_____ <i>Signature</i>	